

July 13, 2026
Dept. 9
Probate Tentative Rulings

11.	26PR0152	RE: JOYCE MARIE LANG LIVING TRUST, AKA: LANG LIVING TRUST
PETITION SEEKING APPOINTMENT OF TRUSTEE AND REASONABLE COMPENSATION		

Petitioner, Lori Kocher ("Petitioner"), filed a petition to appoint a successor trustee as there is currently a vacancy and the only named successor trustee under the Trust has died, and no other person or entity is serving or able to act as trustee.

Probate Code § 15660

(a) If the trust has no trustee or if the trust instrument requires a vacancy in the office of a cotrustee to be filled, the vacancy shall be filled as provided in this section.

(b) If the trust instrument provides a practical method of appointing a trustee or names the person to fill the vacancy, the vacancy shall be filled as provided in the trust instrument.

(c) If the vacancy in the office of trustee is not filled as provided in subdivision (b), the vacancy may be filled by a trust company that has agreed to accept the trust on agreement of all adult beneficiaries who are receiving or are entitled to receive income under the trust or to receive a distribution of principal if the trust were terminated at the time the agreement is made. If a beneficiary has a conservator, the conservator may agree to the successor trustee on behalf of the conservatee without obtaining court approval. Without limiting the power of the beneficiary to agree to the successor trustee, if the beneficiary has designated an attorney in fact who has the power under the power of attorney to agree to the successor trustee, the attorney in fact may agree to the successor trustee.

(d) If the vacancy in the office of trustee is not filled as provided in subdivision (b) or (c), on petition of any interested person or any person named as trustee in the trust instrument, the court may, in its discretion, appoint a trustee to fill the vacancy. If the trust provides for more than one trustee, the court may, in its discretion, appoint the original number or any lesser number of trustees. In selecting a trustee, the court shall give consideration to any nomination by the beneficiaries who are 14 years of age or older.

Proof of service of notice was filed on May 29, 2026.

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MODIFICATION OF TRUST

Petitioner seeks a modification of the trust to have the ability to receive compensation. The Trust currently provides, “The Trustee shall receive no compensation for services as Trustee under this Declaration.”

Petitioner is not a beneficiary of the trust. The Trust requires ongoing administration including managing and safeguarding Trust assets, maintaining records, preparing accountings, coordinating tax compliance, communicating with beneficiaries, and engaging professionals as needed. Petitioner asserts performing these substantial fiduciary services warrant reasonable compensation consistent with customary standards for trustees administering trusts of similar size and complexity in California.

Petitioner believes without reasonable compensation:

1. Trustee may be unwilling or unable to continue serving, risking disruption to Trust administration;
2. It may be difficult to recruit or retain qualified successor trustees in the future;
3. The trust may incur greater expense and delay due to the need for repeated court involvement or trustee turnover;
4. The requested modification is administrative in nature and is intended to facilitate proper Trust administration and to further the Trust’s purposes; and
5. The requested modification does not change the nature of the trust as it was drafted gifting the trust assets to the solely named successor trustee and thus there was no need to have compensation.

Probate Code § 15680

(a) Subject to subdivision (b), and except as provided in Section 15688, if the trust instrument provides for the trustee's compensation, the trustee is entitled to be compensated in accordance with the trust instrument.

(b) Upon proper showing, **the court may fix or allow greater or lesser compensation** than could be allowed under the terms of the trust in any of the following circumstances:

- (1) **Where the duties of the trustee are substantially different from those contemplated when the trust was created.**
- (2) **Where the compensation in accordance with the terms of the trust would be inequitable or unreasonably low or high.**
- (3) **In extraordinary circumstances calling for equitable relief.**

(c) An order fixing or allowing greater or lesser compensation under subdivision (b) applies only prospectively to actions taken in administration of the trust after the order is made. (emphasis added)

In *Thorpe v. Reed* (2012) 211 Cal.App.4th 1381, the court held that where the trust instrument specifically states that a successor trustee is not entitled to compensation, and the trustee unconditionally accepted the appointment by performing duties, the trustee is bound by the no compensation clause.

“If a trust contains a fee clause that a potential successor trustee believes will provide inequitably low compensation, the trustee should either condition acceptance on modification of the clause by the court or should refuse to accept the appointment until the current trustee has obtained a modification.”.) “However this may be, the [trust] having limited the amount which [plaintiff] should receive as compensation for [his] services ... and [plaintiff] having accepted the[] trust, [he is] bound thereby, and the order of the court allowing [him] a greater amount is without authority.” (*Estate of Whitney*, supra, at p. 650, 248 P. 754.) *Id.* at 1393

Here, Petitioner seeks appointment as successor trustee while simultaneously requesting reasonable compensation due to the fact that the Trust prohibits compensation. The Court finds that such circumstances exist to allow for reasonable compensation pursuant to Probate Code § 15680.

TENTATIVE RULING #11:

ABSENT OBJECTION THE PETITION FOR APPOINTMENT OF SUCCESSOR TRUSTEE IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

PETITIONER’S REQUEST FOR MODIFICATION OF THE TRUST TO AUTHORIZE REASONABLE COMPENSATION IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY

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AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

12.	26PR0153	IN THE MATTER OF D.J. AND L.J. CHASE FAMILY 1988 REVOCABLE TRUST, DATED DECEMBER 27, 1988, INCLUDING THE DANIEL J. CHASE SURVIVING SPOUSE'S TRUST AND THE FAMILY BYPASS TRUST
PETITION TO CONTEST TRUST AMENDMENTS AND TRUSTEE'S NOTIFICATION, AND COMPEL ACTIONS		

Pending before the court is the petition of Scott Alan Chase and Daniel Lee Chase (collectively, "petitioners"), pursuant to Probate Code section 17200, et seq.,¹ seeking a determination that the January 28, 2026, trustee's notification was materially defective under section 16061.7 and therefore, did not trigger the 120-day limitations period for petitioners to contest the trust under section 16061.8. (Petn., ¶¶ 43-44.) Alternatively, petitioners seek to assert a timely claim contesting the validity of certain trust amendments, and request that the court determine construction of the trust, compel accounting, tracing, and restoration, and impose a surcharge. (Petn., ¶ 45.)

Proof of service filed May 28, 2026, indicates the petition and notice of hearing were served upon the trustee, all beneficiaries, and all other persons whose right, title, or interest would be affected by the petition. (Petn., ¶ 124; see, § 17203.) To date, no opposition has been filed.

When a trust becomes irrevocable, section 16061.7 requires the trustee to serve a notice advising, among other things, that any contest to the trust must be filed within 120 days.

Petitioners claim the trustee's notice issued by respondent James Robert Johnson on January 28, 2026, is invalid because: (1) the notice did not inform petitioners that they are entitled, upon reasonable request to the trustee, to receive from the trustee a true and complete copy of the terms of the trust; (2) the declaration of mailing the notice omits the date of mailing and date of execution; (3) the notice's references to "the Trust" is vague and ambiguous because it is unclear whether the trustee was referring to the Survivor's Trust, the Family Bypass Trust, or any other portions of the trust estate; (4) the notice identifies respondent James Johnson as trustee of "the Trust," while other communications reportedly take the position that he is trustee only of the Survivor's Trust (and not the Family Bypass Trust); and (5) the notice and transmittal materials indicate petitioners may not have received a true and complete copy of all trust terms. (Petn., ¶ 42.)

Section 16061.8's 120-day statute of limitations begins to run on the date a valid section 16061.7 notice is served on the recipient. (§ 16061.8.) The court agrees with petitioners that the declaration of mailing does not include the date the trustee's notice was mailed or the date the declaration was executed. (See Petn., Ex. A.) Without any other evidence before the court

¹ Further undesignated statutory references are to the Probate Code.

showing when the trustee's notification was served, the court finds that petitioners have demonstrated the trustee's notification dated January 28, 2026, is insufficient to trigger the 120-day statute of limitations against them.

Where the court determines that the notice otherwise required is insufficient in the particular circumstances, the court may require that further or additional notice, including a longer period of notice, be given. (§ 1202.) The trustee shall serve section 16061.7 notification upon both petitioners within 60 days of the notice of entry of order.

Based on the court's finding that the section 16061.7 notice issued January 28, 2026, is invalid, the court does not reach petitioners' alternative claims in their petition at this time.

TENTATIVE RULING #11:

THE PETITION IS GRANTED. THE COURT FINDS THAT THE TRUSTEE NOTIFICATION DATED JANUARY 28, 2026, IS INSUFFICIENT TO TRIGGER THE 120-DAY STATUTE OF LIMITATIONS AGAINST PETITIONERS UNDER PROBATE CODE SECTION 16061.8. THE TRUSTEE SHALL SERVE PROBATE CODE SECTION 16061.7 NOTIFICATION UPON BOTH PETITIONERS WITHIN 60 DAYS OF THE NOTICE OF ENTRY OF ORDER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

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LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.